

ANNEX 3.

I.—DOCUMENTS TRANSMITTED BY THE SECRETARIAT OF THE LEAGUE OF NATIONS:

- (1) (a) *Document C. 375. 1927. I. Note from the Secretary-General transmitting to the Council:*
- (1) Decision by the High Commissioner, dated April 8th, 1927 (*in English and French*).
 - (2) Appeal by the Danzig Senate, dated May 12th, 1927 (*in English and French*).
 - (3) Reply by the Polish Government to the Danzig Senate appeal, forwarded by the High Commissioner on July 19th, 1927 (*in English and French*).
 - (4) Observations of the Danzig Senate regarding the Polish Reply, forwarded by the High Commissioner on July 27th, 1927 (*in English and French*).
 - (5) Text of the Danzig-Polish Agreement concerning officials, of October 22nd, 1921 (*in German, with English and French translations*).
- (b) Documents held by the Secretary-General at the disposal of the Members of the Council:
- (1) Advisory opinion by Professor Schücking (*in German, with French translation*).
 - (2) Advisory opinion by Professor Kaufmann (*in German, with French translation*).
 - (3) Copy of the decision of the Danzig Supreme Court (*Obergericht*) dated June 29th, 1927, concerning the case of the railway employee Flander v. the Polish Railways (*in German, with French translation*).
 - (4) Provisional Danzig-Polish Agreement concerning officials, dated July 20th, 1921 (*in German*).
 - (5) Prussian Law of May 24th, 1861; *Gesetz betreffend die Erweiterung des Rechtsweges* (*in German*).
- (2) (a) *Document C. 415. 1927. I. Note by the Secretary-General communicating to the Council Part V of the Note dated August 17th, 1927, which contains the Polish observations on the Danzig Note of July 27th, 1927, and on the legal opinions of Professor Schücking and Professor Kaufmann, and on the sentence of the Danzig Supreme Court of June 29th, 1927 (in French and English).*
- (b) Documents mentioned in the Secretary-General's note as held by the Secretariat at the disposal of the Members of the Council:
- Complete text of the Polish Note of August 17th, 1927 (*in French*), with the following annexes:
- (1) Decision of the Danzig Court pronounced on May 1st, 1926, concerning the case Flander (*in German, with French translation*).
 - (2) Danzig-Polish Agreement of October 24th, 1921 (*in German, with French translation*).
 - (3) Danzig Law dated May 30th, 1922, concerning the acquisition and loss of Danzig nationality (*in German, with French translation*).

- 3.—*Document C. 429. 1927.* I. Note by the Secretary-General informing the Council that the following document had been received and was held by the Secretariat at the disposal of the Members of the Council :

Opinion of Professor Cavaglieri, of the University of Naples, submitted by the Polish Government.

Copy of this opinion (*in Italian, with French translation*).

- 4.—*Document C. 478. 1927.* I. Note by the Secretary-General informing the Council that the following documents had been received and were held by the Secretariat at the disposal of the Members of the Council :

(1) Opinion by Professor Louis Le Fur, submitted by the Polish Government.

(2) Danzig Note dated September 10th, 1927, containing the observations of the Danzig Senate on the Polish Note of August 17th, 1927, and on the opinion of Professor Cavaglieri.

Copies of the above-mentioned documents :

(1) Opinion of Professor le Fur (*in French*).

(2) Danzig Note of September 10th, 1927 (*in German, with French translation*).

- 5.—*Document C. 483. 1927.* I. Note by the Secretary-General informing the Council that the following document had been received and was held by the Secretariat at the disposal of the Members of the Council :

Polish Note dated September 13th, 1927, containing the observations of the Polish Government on the Danzig Note of September 10th, 1927.

Copy of this Note (*in French*).

- 6.—*Document C. 409 (1) and C. 409 (1) (a). 1927.* I. Report presented to the Council by M. Villegas, representative of Chile, on September 22nd, 1927 (*in English and French*).

- 7.—Minutes of the fifth meeting of the 47th Session of the Council, containing the Resolution adopted by the Council on September 22nd, 1927 (*in French and English*).

II.—DOCUMENTS SENT BY THE HIGH COMMISSIONER OF THE LEAGUE OF NATIONS AT DANZIG ON THE REQUEST OF THE COURT, FORWARDED BY THE SECRETARY-GENERAL OF THE LEAGUE OF NATIONS :

(1) Copy of the *Klage des Eisenbahnsekretärs Ferdinand Flander, Neuschöffland, Schellmühlerweg 2, Klägers, gegen die polnische Republik (Eisenbahnfiskus), Beklagte, wegen Feststellung und Zahlung, Wert des Streitgegenstandes G. 200.*

(2) Copy of a letter from M. B. Langowski to the *Landgericht*, Danzig (March 30th, 1926).

(3) Copy of a note from the *Obergericht*, Danzig, in the case of the Polish Republic v. Flander (April 6th, 1926).

(4) Copy of a note from M. B. Langowski, Danzig (April 17th, 1926).

(5) Copy of a letter from M. B. Langowski to the Danzig Supreme Court (April 26th, 1927).

(6) Copy of the *Zwischen-Urteil* (May 1st, 1926) in the case of the Polish Republic v. Flander.

- (7) Copy of a note from M. Max Hellwig and M. Heinz Bauer to the Danzig *Obergericht* (May 18th, 1927).
- (8) Copy of a note from M. B. Langowski to the Danzig *Obergericht* (June 7th, 1926).
- (9) Copy of a note from M. Max Hellwig and M. Heinz Bauer to the Danzig *Obergericht* (June 9th, 1927).
- (10) Copy of a note from M. Max Hellwig and M. Heinz Bauer to the Danzig *Obergericht* (June 10th, 1927).
- (11) Copy of a note from M. B. Langowski to the Danzig *Obergericht* (August 11th, 1926).
- (12) Copy of a letter from the Commissioner-General of the Polish Republic to M. Van Hamel, High Commissioner of the League of Nations at Danzig (January 3rd, 1927).
- (13) Copy of a note from M. B. Langowski to the Danzig *Obergericht* (January 20th, 1927).
- (14) Copy of a note from M. Max Hellwig and M. Heinz Bauer to the Danzig *Obergericht* (January 24th, 1927).
- (15) *Urteil des III. Zivilsenats des Obergerichts der Freien Stadt Danzig vom 22. Juni 1927 — 2. III U. 270/26 — in Sachen der Republik Polen gegen den Eisenbahnsekretär Flander.*
- (16) Note of January 11th, 1926, sent by the Commissioner-General for the Republic of Poland at Danzig to the High Commissioner of the League of Nations.
- (17) *Auszug aus der Verhandlung des Rates des Völkerbundes*, March 3rd, 1921.
- (18) *Danziger Juristischer Monatschrift*, 4. Jahrgang, Nummer 12, Danzig, Dezember 1925.
- (19) Note from the Senate of the Free City of Danzig dated May 27th, 1926 (*in German*).
- (20) Note from the Senate of the Free City of Danzig dated January 12th, 1927 (*in German*).
- (21) Note of the Commissioner-General of the Polish Republic to the High Commissioner of the League of Nations at Danzig (February 8th, 1927) (*in French*).
- (22) Note of the Commissioner-General of the Polish Republic to the High Commissioner of the League of Nations at Danzig (February 28th, 1927) and Annex (*in German*).
- (23) Note of the Commissioner-General of the Polish Republic to the High Commissioner of the League of Nations at Danzig (March 23rd, 1927) (*in French*).

III.—DOCUMENTS FILED ON BEHALF OF THE GOVERNMENTS DIRECTLY INTERESTED :

(a) Documents filed by the Agent for the Polish Government :

- (1) Certified true copy of the judgment given in the case of Holz v. Polish Republic (*in German*).
- (2) Letter of July 6th, 1926, sent by the High Commissioner of the League of Nations to the Commissioner-General of the Polish Republic at Danzig and extracts in German of the legal *exposé* of the Danzig Senate in the Menge case.
- (3) Ordinance concerning the deposit of the declarations provided for under Article 1 of the Agreement of October 22nd, 1921, dated December 22nd, 1921.

- (4) Decision of the Polish Railway Administration at Danzig (concerning officials' uniforms) (May 4th, 1923).
- (5) Circular of the Polish Railway Administration at Danzig (concerning the swearing in of officials) (April 23rd, 1925).
- (b) *Documents filed by the Agent for the Danzig Government:*
 - (1) Certified true copy of the judgment given in the case of Holz v. Polish Republic (*in German*).
 - (2) Certified true copy of a Note dated January 18th, 1928, and sent by the Senate of the Free City of Danzig to the diplomatic representative of the Polish Republic.
 - (3) Certified true copy, in Polish with a German translation, of a Note from the Commissioner-General of the Polish Republic at Danzig, dated January 9th, 1928.

IV.—COLLECTION OF DOCUMENTS PREPARED BY THE REGISTRY:

- (1) Decisions by the High Commissioner of the League of Nations at Danzig (August 15th, 1921, and September 5th, 1921) (*in English, with a German translation*).
 - (2) Extract from the Constitution of the Polish Republic (March 17th, 1921, and August 2nd, 1926) (*in French*).
 - (3) Extract from the Constitution of the Free City of Danzig (League of Nations—*Official Journal*—Special Supplement No. 7—July, 1922) (*in French*).
 - (4) Extracts from *Prawo Narodow*, by Ludwik Ehrlich (*English translation*).
 - (5) Extract from *Danziger Staats- und Völkerrecht*, by Hermann Lewinsky and Richard Wagner (page 127) (*in German*).
 - (6) Polish Law of August 3rd, 1922, constituting the Supreme Administrative Tribunal (*Dz. Ust. poz. 600*).
 - (7) Polish Law of October 9th, 1923, concerning salaries of State officials and military persons (*Dz. Ust. poz. 924*).
 - (8) Polish Ordinance by the Minister of Communications of April 12th, 1924, in pursuance of Article 5 of the Law of October 9th, 1923.
 - (9) Decision No. 485 of the Supreme Administrative Tribunal of November 14th, 1924 (L. R. 135-24).
 - (10) Ordinance of the President of the Polish Republic of September 24th, 1926 (*Dz. Ust. poz. 568*).
 - (11) Extract from a Decision of the Supreme Administrative Tribunal of December 5th, 1927 (L. R. 932-25).
 - (12) Extract from the *Gesetz-Sammlung für die Königlichen Preussischen Staaten* (p. 19) Nr. 777. *Verordnung wegen streitig gewordener Auslegung von Staatsverträgen* (25. Januar 1823) (*in German*).
 - (13) Protocol signed on December 1st, 1921, by the Polish Railway Administration and the Free City of Danzig (*in German*).
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